

## Smt. Neelam Jaiswal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 January 2016 · Writ - C No. 3522 of 2016 · **Petition disposed; liberty to seek instalments under clause 4.39.**

### HEADNOTE

Where supply was disconnected for unpaid bills and the consumer offered to pay in five instalments, the Court, recording the licensee's statement that instalments could be sought under clause 4.39 of the U.P. Electricity Supply Code, 2005, disposed of the writ leaving that application open.

### FACTUAL SUMMARY

The petitioner's electricity connection was disconnected because she had not deposited the electricity bills issued to her. She filed a writ petition in the Allahabad High Court seeking relief in that connection, and her counsel stated that she was ready to deposit the outstanding bills in five instalments. Counsel for the respondent electricity supply company stated that she could seek instalments under clause 4.39 of the Uttar Pradesh Electricity Supply Code, 2005.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.39(b)

instalments after disconnection for unpaid bills

#### HOLDING

The writ was disposed without directing restoration or instalments. The petitioner was left free to seek instalments of the unpaid bills under clause 4.39 of the Supply Code, as stated by the licensee. ¶ 1

**FLAG** order cites clause 4.39 generally, not 4.39(b)

### PRINCIPLE TAGS

#### relegate-to-statutory-remedy

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### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER FIVE INSTALMENTS SHOULD BE GRANTED, AND ON WHAT TERMS

Left to an application under clause 4.39 of the Supply Code ¶ 1